CLACKAMAS CIR COURT
15 JAN 2026 14:46

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF Clackamas

26P000433
Judge: Protective Proceeding,

Benjamin Jay Barber
Petitioner

Case No: _____

_____ _____
Filed by ☐ Guardian *or* ☐ Guardian ad litem

v.

Ashley Ferron (in her official capacity)
Respondent
(Person to be restrained)

RESTRAINING ORDER TO PREVENT ABUSE

(Elderly Persons and Persons with Disabilities Abuse Prevention Act ORS 124)

NOTICE TO RESPONDENT

Review this order carefully

- Petitioner cannot give you permission to do something this Order prohibits
- You may be arrested and subject to civil and criminal penalties if you violate this order
- This order is enforceable in every state
- See the attached *"Notice to Parties"* and *"Request for Hearing"* for information about your right to a hearing

Based on the *Petition* and testimony of ☐ Petitioner ☐ Guardian Petitioner

THE COURT FINDS: *Judge Initials*

☐ Petitioner is an elderly person or person with a disability _____

☐ Respondent has abused Petitioner (as defined by ORS 124.005) within the past 180 days _____

☐ Petitioner is in immediate and present danger of further abuse _____

THE COURT ORDERS:

1. ☒ **Respondent is restrained from abusing, intimidating, molesting, interfering with, or menacing Petitioner** 1. _____

2. ☐ Respondent is prohibited from entering, attempting to enter, or remaining at the following premises: 2. _____
   ☐ Petitioner's residence *(address)*: _____
   ☐ _____
   ☐ _____

3. ☐ Respondent is ordered to **move from** and not return to the residence: 3. _____
   (address): _____

4. ☐ A peace officer will accompany ☐ Petitioner ☐ Respondent to the residence to remove that party's essential personal items including (but not limited to) clothing, toiletries, medications, Social Security cards, birth certificates, identification, and tools of the trade 4. _____

5. Contact 5. _____

Except for appearing at and participating in legal proceedings or as needed to have Petitioner served with legal documents, Respondent is prohibited from contacting Petitioner or knowingly being within ☐ 150 *or* _____ feet of Petitioner

☐ **Except** Respondent may contact Petitioner by this method: _____
for this reason: _____

6. ☐ Sweepstakes 6. _____

Respondent is restrained from mailing Petitioner any sweepstakes promotion effective **150 days** from the date of this Order. Respondent is ordered to remove Petitioner from Respondent's sweepstakes promotion mailing list or place Petitioner on a list of persons to whom sweepstakes promotions may not be mailed. Respondent is ordered to promptly refund any payment received in any form from Petitioner after the date of this Order.

7. ☐ Money and Property 7. _____

Respondent is:

- ☒ restrained from exercising control of Petitioner's money or property
- ☐ ordered to follow the instructions of Petitioner's guardian or conservator
- ☐ prohibited from transferring Petitioner's money or property to anyone other than Petitioner
- ☒ ordered to return custody and control of the following money or property to Petitioner by *(date)*_____ *(list property)*_____

housing voucher under section 11 porting it to multnomah County

8. No further service is necessary because Respondent appeared in person before the court 8. _____

9. *(FOR COURT USE ONLY)*

FIREARMS PROHIBITION AND DISPOSSESSION **Judge's Initials**

(Not required unless firearms terms are being ordered.)

9A. The court orders Respondent is PROHIBITED from possessing firearms or ammunition 9A. _____

9B. Respondent is ordered to SURRENDER all firearms and ammunition in their possession according to the attached *Firearms Surrender Terms* because both of the following are found: 9B. _____

- ☐ Petitioner and Respondent have a QUALIFYING RELATIONSHIP *(current or former spouses/Registered Domestic Partners, current/former cohabitants, current/former sexually intimate relationship, adults related by blood or marriage, unmarried parents of a minor child)*
- ☐ Respondent represents a CREDIBLE THREAT to Petitioner's physical safety

FIREARMS NOTIFICATION

If Section 9A is initialed by the judge ordering that you are prohibited from possessing firearms or ammunition, you are immediately prohibited from purchasing or possessing any FIREARM, including a rifle, pistol, or revolver, and AMMUNITION (ORS 107.718(1)(h)).

If Section 9B is initialed ordering you to surrender firearms and ammunition, you will be prohibited from purchasing or possessing any firearms or ammunition under ORS 166.255 if:

- You request a hearing to contest this *Order* and the *Order* is not dismissed
- You request a hearing to contest this *Order* but then withdraw your request
- You request a hearing to contest this *Order* but do not attend the hearing

or

- 30 days pass after you were served with or became aware of this *Order* and you do not request a hearing to contest this *Order*

Talk to a lawyer if you have questions about this

10. SECURITY AMOUNT for violation of any provision of this Order is **$5,000** unless otherwise specified here: $_____ 10. _____

11. Other Orders *(including service orders for sweepstakes promotions)* 11. _____

remove Julio Cortez from the household
consistent with Case no 25PO 11318

The Petition for Restraining Order to Prevent Abuse is:

☒ **DENIED**
- ☑ Petitioner did not establish a claim for relief
- ☐ Petitioner did not appear at the time set for the ex parte hearing on the petition
- ☐ Other:

☐ **GRANTED**

The provisions of this Restraining Order are in effect for a period of one (1) year from the date of the judge's signature *(unless renewed before it expires)* or until the order is dismissed, modified, or replaced, whichever occurs first

Judge Signature:

15 January 2026

David L. Garrett
Judge Pro Tempore

Certificate of Readiness

This proposed order is ready for judicial signature because it is submitted **ex parte** as allowed by statute or rule; or is being submitted in **open court** with all parties present

Submitted by ☐ Petitioner ☐ Guardian petitioner ☐ Attorney for Petitioner

1-14-2026
Date

Ben Barber
Signature

OSB# *(attorneys only)*

Benjamin Jay Barber
Name (printed)

10043 SE 32nd Ave Milwaukie OR 97222 971 270 0855
Contact Address *(use a SAFE address)* City, State, ZIP Contact Phone *(use a SAFE number)*

SERVICE INFORMATION

*****The Respondent will receive a copy of this information*****
If you do not want Respondent to know your residential address or phone number, use a contact address in the state where you reside or a contact phone number so the court and the sheriff can reach you if necessary. Check for mail at this address frequently. The court will assume that you receive all notices sent to your contact address.

PETITIONER: *(Name)* Benjamin Jay Barber ☐ Female ☒ Male ☐ Nonbinary

10043 SE 32nd Ave Milwaukie OR 97222
****Residence/Contact Address (use a safe address):**** *Street* *City, State* *ZIP*

Contact Phone Number 971 270 0855 *(Use safe contact number)*

Age 40 Race/Ethnicity white Height 5'10 Weight 200

Eye Color Brown Hair Color Brown

RESPONDENT: *(Name)* Ashley Ferron ☒ Female ☐ Male ☐ Nonbinary

Residence Address ??
County

Phone Number 503 867 7487

Date of Birth: ?? Race/Ethnicity ?? Height ?? Weight ??

Eye Color ?? Hair Color ??

PLEASE FILL OUT THIS INFORMATION
TO HELP WITH SERVICE OF THE RESTRAINING ORDER

Where is Respondent most likely to be found?

☐ Residence Hours _____ *Address above*
☒ Employment Hours _____ Address 13930 Gain St Oregon City
☐ Other: Hours _____ Address _____

Description of Vehicle ??

Is there anything about the other party's character, past behavior, or the present situation that indicates that he or she may be a **danger** to others? To him/herself? (*Explain*): _____

Does the other party have any **weapons, or access to weapons**? (*Explain*): _____

Has the other party ever been **arrested for or convicted of** a violent crime? (*Explain*): _____

NOTICE TO PARTIES AND REQUEST FOR HEARING

THIS FORM MUST BE ATTACHED TO ALL COPIES OF THE *RESTRAINING ORDER*

Notice of Petitioner's Rights

PETITIONER: You have the same right to request a hearing as the Respondent. File your *Request for Hearing* within 30 days of receiving notice of the *Order*.

If your *Petition* was filed by a guardian or guardian ad litem ("guardian petitioner") you still have the right to:

- talk to and be represented by a lawyer
- see your personal records
- request a hearing
  and
- present evidence and question witnesses at any hearing

RESPONDENT

A judge has issued a restraining Order that affects your rights. The order is now in effect.

Enforceability of the Restraining Order

The *Restraining Order* you have received is in effect and remains in effect until the court changes (modifies) or dismisses it, or until it expires. The petitioner may renew the order.

If you are arrested for violating this order, the security amount (bail) is $5,000, unless a different amount is ordered by the court.

Violation of the Restraining Order

Violation of any part of this order (or any order renewing or changing this order) is contempt of court. Contempt is punishable by a fine of up to $500 or 1% of your annual gross income, whichever is greater, or a jail term of up to six months, or both. Other penalties may also be imposed.

FIREARMS PROHIBITIONS MAY APPLY TO YOU!

If a firearms prohibition in Section 9 of the *Restraining Order* is initialed by the judge:

If 9A is initialed: Civil Penalties for Firearms Possession Apply

- it is immediately unlawful for you to possess or purchase a firearm, including a rifle, pistol, or revolver, and ammunition under ORS 124.020(1)(f)
- you are subject to contempt of court for violation of the firearms prohibition as soon as you are served with the *Order*

If 9B is initialed: Criminal Penalties for Firearms Possession Apply (ORS 166.255(1)(a))

You will be subject to criminal penalties for possessing firearms or ammunition effective the earlier of:

(1) 30 days after you were served with or became aware of the *Order*

Or, if you request a hearing:

(2) the date of the hearing if the *Order* is not dismissed *or*

(3) the date of the hearing if you fail to appear at the hearing *or*

(4) the date you withdraw your request for a hearing

You may also be prohibited from:

- Serving in the Armed Forces of the United States or being employed in law enforcement. If you have any questions about how these laws apply to you, talk to a lawyer.
- Traveling across state lines or tribal land lines with the intent to violate this Order and then violating this order
- Causing the Petitioner to cross state lines or tribal land lines for the purpose of violating the order

Other Laws May Also Apply To You

Whether or not a Restraining Order is in effect, federal law may prohibit you from:

- Traveling across state lines or tribal land lines with the intent to injure the Petitioner and then intentionally committing a crime of violence causing bodily injury to the Petitioner.
- Causing the Petitioner to travel across state lines or tribal land lines if your intent is to cause bodily injury to the Petitioner or if the travel results in your causing bodily injury to the Petitioner.

BOTH PARTIES

If you oppose the *Restraining Order*, complete the attached "*Request for Hearing*" form. Mail or deliver it to the address below.

A REQUEST FOR HEARING must be filed with the court **within 30 days** after you received the order. You must include your address and telephone number. A hearing will be held within 21 days after you file your request with the court. **If you do not go to the hearing, the restraining order may remain in effect.**

At the hearing, both parties can bring witnesses, including adult protective services workers. The hearing may be held in person or by telephone. The court may change, cancel, or continue any of the terms of the *Order*. The court may order either party to move from the residence, and may order one party to pay attorney fees and costs associated with the hearing.

If you do not request a hearing within 30 days, the order will remain in effect as issued

IF YOU COMPLETE THE REQUEST FOR HEARING FORM, MAIL OR DELIVER IT TO (*address of court*): Clackamas County Circuit Court
1000 Courthouse Rd.
Oregon City, OR 97045

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FOR THE COUNTY OF Clackamas

26P000433
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Benjamin Jay Barber
Petitioner

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v.

Ashley Ferron (in her official capacity)
Respondent

REQUEST FOR HEARING

(Elderly Persons and Persons with Disabilities Abuse Prevention Act)

➢ *I need an interpreter:* ☐ *Spanish* ☐ *Russian* ☐ *other:* _____

I am the ☐ Respondent ☐ Petitioner. I request a hearing to oppose the *Restraining Order*.

I oppose the following orders granted in the *Restraining Order*:

Section Number	Explain:

☐ Additional page attached

I ☐ will ☐ will not be represented by an attorney at the hearing
Name and bar number of the attorney (if known): _____

☐ I will need Americans with Disabilities Act accommodations at the hearing

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Submitted by: ☐ Respondent ☐ Petitioner ☐ Attorney for {☐ Respondent ☐ Petitioner}

Date _____ Signature _____

Email _____ Name (printed) _____

Contact Address _____ City, State, ZIP _____ Contact Phone _____

Attorney for filing party:

Date	Signature
OSB#	Name (printed)

Address	City, State, ZIP	Phone

ENTERED
JAN 14 2026
By: BZ

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FOR THE COUNTY OF Clackamas

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Respondent
(Person to be restrained)

PETITION FOR RESTRAINING ORDER TO PREVENT ABUSE
Ex Parte

(Elderly Persons and Persons with Disabilities Abuse Prevention Act)

➢ *I need an interpreter:* ☐ *Spanish* ☐ *Russian* ☐ *other:* _____

NOTICE TO PETITIONER

➢ You must provide **complete and truthful** information. If you do not, the court may cancel the restraining order. The court may also hold you in contempt.

➢ **Contact Address and Telephone Number:** If you don't want Respondent to know your residential address or phone number, use a safe contact address and telephone number so the court and the sheriff can reach you if necessary.

I am ☒ **Petitioner** *or* ☐ **Petitioner's guardian or guardian ad litem**[1] ("guardian petitioner"). I declare that the following information is true as to Petitioner:

1. Residency
I live in *(county and state)* Clackamas, Oregon

Respondent lives in *(county and state)* unknown

☒ I am filing in this county because an incident of abuse occurred here (see below)

If this Petition is filed by a guardian petitioner, Petitioner's SAFE contact information:

10043 SE 32nd Ave	Milwaukie, Oregon 97222	9712700855
Street	*City, State, ZIP*	*Contact Phone*

2. Party Information
Petitioner:
☐ is age 65 or older
☒ is a person with a disability

Other disability information *(optional)*: Barber has vision impairment, and has aspergers, Cortez has mobility impairment and intellectual impairment also.

☐ Respondent is not a court-appointed guardian or conservator for Petitioner

[1] Complete all answers on behalf of Petitioner, not yourself, unless otherwise specified

3. Other Cases Between Petitioner and Respondent *(pending or finished)*

☐ There is a restraining order[2] or stalking order

County and state: _____ Case #: _____

☐ There is a court case for divorce (dissolution), annulment, or separation

County and state: _____ Case #: _____

☐ There is a protective order case under ORS Chapter 125 (Guardianship and Conservatorship)

County and state: _____ Case #: _____

4. Abuse within past 180 days

Within the past 180 days (about 6 months)* the respondent has abused me (as defined in ORS 124.005(1)) at least one time in the following ways:
(check all that apply)

☐ Caused (or tried to cause) me physical pain or injury (not by accident)
☒ Caused physical harm by withholding services needed for my health and well-being
☐ Abandoned me by neglecting to perform or stopping duties and obligations and is my caretaker
☒ Wrongfully took or used my money or property, or threatened to
☐ Had sexual contact with me that I did not consent to or was not able to consent to
☒ Made me fear significant physical or emotional harm by:
- ☐ using derogatory, inappropriate, or profane names or phrases
- ☐ ridicule, harassment, threats, or intimidation
- ☐ inappropriate sexual comments
- ☒ conduct or actions

**The 180-day period can be increased by any time Respondent was in jail or prison, or lived more than 100 miles from your home*

☐ Respondent was in jail or prison
Dates (from – to) _____
☐ Respondent lived more than 100 miles from my home
Dates (from – to) _____

5. Incidents of Abuse *(if filing for sweepstakes restrictions, skip to section 7, below)*

A. Specific Acts re: Money or Property

☒ Respondent wrongfully took or used Petitioner's money or property
☒ Respondent knowingly alarmed Petitioner by threatening to wrongfully take or use money or property. It is reasonable for Petitioner to believe the threat would be carried out.

B. Describe the incidents of abuse that happened **within the past 180 days**, starting with the most recent incident

[2] Under EPPDAPA, Family Abuse Prevention Act (FAPA), or any other source

Date: December 15th 2025 County, State: Clackamas Oregon

the Housing Authority of Clackamas County determined that the household for my residence consisted of Jane Cortez and Julio Regal Florez-Cortez Sr., and removed Benjamin Barber from the lease. This occurred after a restraining order to prevent abuse was issued and continued after hearing, with findings that abuse had occurred and that there was an immediate and present danger of further abuse. The Housing Authority was informed of this order.

Date: December 15th County, State: Clackamas Oregon

The Housing Authority's actions are ongoing and continue to affect Petitioners' housing and safety. Petitioners fear further harm because Respondent continues to assert control over the residence in a way that conflicts with the court ordered protection and Jane Cortez's expressed wishes, as reflected by my own petition to restrain Julio Regal Florez-Cortez sr against abuse of me.

Date: December 15th County, State:

The housing authority of clackamas county has told me that I had to choose between living in the blossom apartments, which they admit may not be ready by the time they evict me from my home to demolish it, or have me take a housing voucher, but meanwhile when I did try to do that by moving to clackamas county to live in multnomah county, I am being told that I am going to lose my section 8 if i move to multnomah county by my payee

☐ Additional page attached labeled "Incidents of Abuse – 180 Days"

C. ☐ Other incidents of abuse happened **more than 180 days ago** *(describe)*:

☐ Additional page attached labeled "Additional Incidents of Abuse"

6. ☒ I am in **immediate and present danger of future abuse** by Respondent
Explain:
Since these incidents the Housing authority's actions have continued to affect my housing and support, making me afraid that I will have to live with a man who abused me for many years, and commits fraud against the government, and otherwise that i will be homeless if i dont accept this.

7. *For sweepstakes restriction:*
☐ Petitioner has spent more than $500 on sweepstakes promotions from Respondent and/or associated entities in the past year. Petitioner needs the court's assistance to avoid incurring further expense.

8. **Move-out and Assistance Orders**
☐ I want Respondent ordered to move out of my residence *(check all that apply)*:
- ☐ the residence is solely in my name
- ☒ Respondent and I jointly own, lease, or rent the residence
- ☐ Respondent is my spouse or Registered Domestic Partner[3]

☐ I want a peace officer to accompany ☐ me ☐ Respondent to leave the residence and/or remove essential personal effects from the residence

9. **Firearms Prohibition and Dispossession** *(optional)*
☐ I ask the court to prohibit Respondent from possessing firearms and ammunition and to order Respondent to surrender all firearms and ammunition currently in their possession because Respondent is a threat to my physical safety and welfare.
Explain why: _____

☐ Petitioner and Respondent have a QUALIFYING RELATIONSHIP:
- ☐ spouses/Registered Domestic Partners *(current or former)*
- ☐ cohabitants *(current or former)*
- ☐ in a sexually intimate relationship *(current or former)*
- ☐ adults otherwise related by blood or marriage

10. Additional Relationship Information
(This information is optional. You do not have to tell the court what your relationship to Respondent is unless you have asked for an order prohibiting firearms in Section 9. Your restraining order will not be denied if you choose not to provide relationship information.)

Respondent is my:
☐ family member ☐ roommate/cohabitant ☒ landlord ☐ caregiver

[3] Only same-sex couples can have a Registered Domestic Partnership in Oregon. If you are not sure if your partnership is a Registered Domestic Partnership, you may want to talk to a lawyer.

☐ other: _____

11. Attorney Fees

☐ I want Respondent to reimburse me for attorney fees and other expenses related to this case

I ask the court to order my requests as marked on the Restraining Order to Prevent Abuse

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I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Submitted by: ☒ Petitioner ☐ Guardian petitioner ☐ Attorney for Petitioner

1-14-2026
Date

Signature

starworks5@gmail.com
Email

Benjamin Jay Barke
Name (printed)

10043 SE 32nd Ave Milwaukie, OR 97222 971 270 0855
Contact Address *(use a SAFE address)* City, State, ZIP Contact Phone *(use a SAFE number)*

Attorney for Petitioner:

Date

Signature

OSB#

Name (printed)

Address City, State, ZIP Phone